NC: 2024:KHC:1169
CA No. 450 of 2023
IN CA No. 379 of 2003
IN COP No. 65 of 1995

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 10TH DAY OF JANUARY, 2024

BEFORE

THE HON'BLE MR JUSTICE ANANT RAMANATH HEGDE

COMPANY APPLICATION NO. 450 OF 2023

IN

COMPANY APPLICATION NO.379 OF 2023

IN

COMPANY PETITION NO.65 OF 1995

BETWEEN:

SMT JAYALAKSHMI,
W/O LATE D RAJASHEKAR REDDY,
AGED ABOUT 78 YEARS,
R/T NO.23, KESHAVA KRUPA,
II FLOOR, FIRST MAIN ROAD,
NRUPATHUNGA NAGAR,
JP NAGAR 7TH PHASE,
BANGALORE - 560 076.

...APPLICANT

(BY SRI MADHUKAR M DESHPANDE, ADVOCATE)

AND:

OFFICIAL LIQUIDATOR,
ATTACHED TO HIGH COURT OF KARNATAKA,
M/S KALYAN KENONICS LIMITED, (IN LIQUIDATION)
IV FLOOR, D AND F WING, KENDRIYA SADAN,
KORAMANGALA, BANGALORE - 560 034

...RESPONDENT

(BY SRI K S MAHADEVAN FOR OL)

THIS COMPANY APPLICATION IS FILED UNDER ORDER 3(2) OF THE CODE OF CIVIL PROCEDURE, 1908 READ WITH RULES 6 AND 9 OF THE COMPANY (COURTS) RULES, 1959

Digitally signed by BELUR RANGADHAMA NANDINI
Location: HIGH COURT OF KARNATAKA

PRAYING TO PERMIT THE APPLICANT TO LEAD THE EVIDENCE AND PROSECUTE THE ABOVE CASE THROUGH HER AGENT, NAMELY SRI VIJAYA BASKAR REDDY, IN THE INTEREST OF JUSTICE AND EQUITY.

THIS COMPANY APPLICATION COMING ON FOR ORDERS THIS DAY THE COURT MADE THE FOLLOWING:

ORDER

1. An application is filed under Order III Rule 2 of the Code of Civil Procedure, 1908 read with Rule 6 and 9 of the Company (Courts) Rules, 1959.

2. The applicant is aged about 78 years old. The applicant claims that she is unable to attend the Court on account of old age and she seeks permission of this Court to examine her son, who is said to be duly constituted attorney. Learned counsel appearing for the Official Liquidator would submit that the Power of Attorney holder is not acquainted with the facts of the case, as such the application is not maintainable.

3. Learned counsel for the applicant would submit that the Power of Attorney holder was working in the same Company which is ordered to be wound-up.

4. This Court has considered the contentions raised at the bar.

5. Reserving liberty to the Official Liquidator to substantiate his contentions relating to the personal knowledge of the Power of Attorney holder in the cross-examination. CA No.450/2023 is ***allowed***.

6. Applicant is permitted to lead evidence of the Power of Attorney holder.

7. List this matter before the Central Project Co-ordinator for recording evidence on 17.01.2024.

Sd/-
JUDGE

GVP